

Court No. - 21

Case :- WRIT - C No. - 17659 of 2023

Petitioner :- Mukesh Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The petitioner has challenged the demand notices dated 30.12.2022 and 8.2.2023 issued by respondent no. 3 demanding different amounts from the petitioner in a case concerning theft of electricity.

2. Sri P.N. Rai, learned counsel for the respondent-Electricity Department, is in receipt of instructions. He fairly concedes that notice of provisional assessment was defective as it was issued on 30.12.2022 fixing 16.1.2023, but was sent on 9.1.2023 and thus, fifteen days clear notice was not there to file reply and to appear before the Authority for personal hearing, as stipulated under Clause 8.1 of the U.P. Electricity Supply Code, 2005. He states that the respondent will pass a fresh order.

3. Having regard to the aforesaid stand of counsel appearing on behalf of the respondent-Electricity Department, we quash the impugned notices and leave it open to respondent no. 3 to proceed afresh, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.5.2023

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